

26NWCV00193 26NWCV00193

County: los-angeles

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Case Number: 26NWCV00193 Hearing Date: September 11, 2026 Dept: P

MARIA C. HERNANDEZ v. EAST

LA REMARKABLE CITIZEN'S ASSOCIATION, INC.

CASE NO.: 26NWCV00193

HEARING: 09/11/2026 @

9:30 AM

#12

TENTATIVE ORDER

I.

Defendant East LA Remarkable Citizen's

Association, Inc.'s motion to deem requests for admissions, set one, admitted as to Plaintiff Maria C. Hernandez is GRANTED.

II.

Defendant's request for monetary

sanctions against Plaintiff and Plaintiff's counsel of record is GRANTED in the amount of \$760.

Moving party to give notice.

Defendant East LA Remarkable Citizen's Association, Inc. (Defendant)

moves for an order deeming the matters specified in its Requests for Admissions (RFAs), set one, admitted as to Plaintiff Maria C. Hernandez (Plaintiff).

Background

On January 15, 2026, Plaintiff filed this personal injury action against Defendant and Does 1 through 50. The form complaint alleges that on June 21, 2024, at or around I-710 S/B Freeway, in the vicinity of Florence Ave, City of Bell, Plaintiff sustained injuries after a vehicle owned by Defendant collided into her vehicle. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

Legal Standard

Under Code of Civil Procedure section 2033.250, subdivision (a), a party must respond to requests for admission within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280, subd. (b).) The court “shall” grant a motion to deem admitted requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).)

Discussion

Defendant moves to deem the truth of the matters specified in its RFAs, set one, admitted as to Plaintiff. This motion is unopposed.

Defendant states that it served Plaintiff with RFAs, set one, on July 2, 2026, making responses due by August 4, 2026. (Mulgrew Decl., ¶¶ 2-3.) As of the date of this motion, Plaintiff has not provided any responses. (Mulgrew Decl., ¶ 4.)

Based on Plaintiff’s failure to serve timely responses to Defendant’s RFAs, set one, Defendant’s motion to deem the truth of the matters in RFAs, set one, admitted is GRANTED.

Plaintiff Maria C. Hernandez is deemed to have admitted the truth of all matters specified in Requests for Admissions, set one, as of this

date.

Sanctions

Defendant moves for monetary sanctions against Plaintiff and Plaintiff's counsel of record pursuant to Code of Civil Procedure Section 2033.290.

Under Code of Civil Procedure section 2033.280, subdivision (c), "[i]t is mandatory that the court impose a monetary sanction...on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion."

Here, sanctions are mandatory due to the failure to submit timely responses. Defendant requests \$1,110 in sanctions for bringing this motion. This amount reflects defense counsel's billing rate of \$350, 2 hours to prepare this motion, 1 hour to prepare an opposition and reply, and \$60 in filing fees. (Mulgrew Decl., ¶ 5.) The Court finds this unreasonably excessive given that this motion is unopposed. The Court reduces 1 hour.

Accordingly, Defendant's request for monetary sanctions is GRANTED in the amount of \$760 against Plaintiff and Plaintiff's counsel of record.

Plaintiff and Plaintiff's counsel of record are ORDERED to pay this amount within 60 days of this Order. This date may be extended pursuant to agreement between the parties.